

CONSIGNMENT AGREEMENT

Trial consignment between Wine & Whiskey and FlyO. Goods placed on consignment, sold by FlyO, reported and reconciled weekly, replenished as needed — title stays with Wine & Whiskey until each item is sold.

TRIAL PERIOD	REPORTING	REPLENISHMENT
2 months	Weekly — every Tuesday	As needed

This Agreement is made on _____ (date) between:

CONSIGNOR — "WE"**Wine & Whiskey**

New Latitude Co., Ltd. · Tax ID

0835565026116

66/2, Building E, Unit 11-12, Moo 6, Rawai,
Mueang, Phuket

CONSIGNEE — "YOU"**FlyO**

Rooftop bar & restaurant · Phuket

LEGAL / TRADE NAME

REGISTRATION / TAX
ID

REGISTERED
ADDRESS

CONTACT PERSON · PHONE · EMAIL

01 CONSIGNMENT & TITLE

1.1 The Consignor delivers the products listed in **Appendix A** (the "Goods") on a **consignment** basis. The Consignee does **not** purchase the Goods on delivery.

1.2 **Title** to each item remains with the Consignor until that item is **sold** to an end customer. Title passes to the Consignee at the moment of sale, triggering the payment obligation in Section 5.

1.3 The Goods are held by the Consignee as bailee, kept separately identifiable as the Consignor's property, and shall not be pledged, encumbered, or used as security.

02 TRIAL PERIOD

2.1 This Agreement runs for a **trial period of two (2) months** from start date to end date (the "Trial Period").

2.2 At least one week before the end, the Parties review results and decide to (a) continue on a rolling basis, (b) sign a longer-term agreement, or (c) end the arrangement and return unsold Goods per Section 8.

2.3 If deliveries and reporting continue past the end date without notice, the Agreement continues month-to-month on the same terms until terminated under Section 9.

03 DELIVERY & REPLENISHMENT

3.1 Each delivery is accompanied by a **Delivery Note** itemising product, quantity, and consignment price. The Consignee signs it on receipt; the signed Delivery Note is the record of Goods on hand.

3.2 **Replenishment** is made as needed — typically alongside the weekly reconciliation — to keep an agreed working stock, confirmed by the Consignor and recorded on a new Delivery Note.

3.3 The Consignee provides secure storage suitable for wine and spirits (conditions if relevant) and is responsible for the Goods while on its premises.

04 WEEKLY REPORTING & RECONCILIATION

4.1 **Every Tuesday** the Consignee sends a **list of items sold** since the previous report (the "Weekly Sales Report" — see Appendix B), covering the period through the preceding day.

4.2 On the same day the Parties **reconcile** delivered vs. sold vs. on hand:

$$\text{Opening} + \text{Delivered} - \text{Sold} - \text{Loss} = \text{Closing stock}$$

4.3 Discrepancies are resolved at the weekly reconciliation. Missing or damaged Goods that cannot be accounted for are treated as **sold** for payment purposes (Section 5), unless agreed otherwise in writing.

05 PRICING, INVOICING & PAYMENT

5.1 **Consignment price.** The Consignor's price per item is set in Appendix A, VAT (7%) inclusive. The Consignee sets its own resale price; the difference is its margin.

5.2 **Tax Invoice.** Against each Weekly Sales Report the Consignor issues a Tax Invoice for the items sold that week, at the consignment price.

5.3 **Payment.** The Consignee pays within **7** days of invoice, by bank transfer to: K Bank · a/c 150-3-12001-8 · New Latitude Co., Ltd.

5.4 **Receipt.** On receipt of payment the Consignor issues a Receipt for the amount paid.

5.5 **Document flow per cycle:**

Delivery Note



Weekly Sales Report (Tue)



Tax Invoice



Payment



Receipt

06 RESPONSIBILITY FOR THE GOODS

6.1 From signed receipt until sale or return, the Consignee bears the risk of loss, theft, breakage, or deterioration on its premises, and shall pay the consignment price for any Goods so lost or damaged.

6.2 The Consignee shall store, handle, and display the Goods with reasonable care and in compliance with applicable licensing and alcohol-sale regulations.

07 LICENCES & COMPLIANCE

7.1 The Consignee warrants it holds all licences and permits required to store, display, and sell alcoholic beverages, and shall comply with all applicable Thai laws, including sale-hour restrictions and the prohibition on sale to minors.

08 RETURN OF UNSOLD GOODS

8.1 On expiry or termination, the Consignee returns all unsold Goods in **resaleable condition**. A closing reconciliation is performed; the Consignee pays for any Goods sold but not yet invoiced, and for any unaccounted or non-resaleable Goods at the consignment price.

8.2 Return transport / collection is arranged by Consignor / Consignee.

09 TERM & TERMINATION

9.1 Either Party may terminate at any time on 7 days' written notice.

9.2 Either Party may terminate immediately on the other's material breach (including non-payment) not cured within days of written notice.

9.3 On termination, Sections 5 (for sold Goods), 6, 8, 10, and 11 survive.

10 CONFIDENTIALITY

Pricing, terms, and commercial information exchanged under this Agreement are confidential and shall not be disclosed to third parties without the other Party's consent, except as required by law.

11 GENERAL

11.1 **Independent parties.** Nothing here creates a partnership, employment, or agency beyond the consignment described.

11.2 **Entire agreement.** This Agreement with its Appendices is the entire agreement and supersedes prior discussions. Amendments must be in writing and signed.

11.3 **Governing law.** Governed by the laws of Thailand; disputes subject to the courts of Phuket.

SIGNATURES

CONSIGNOR — WINE & WHISKEY

CONSIGNEE — FLYO

SIGNATURE

SIGNATURE

NAME & TITLE

NAME & TITLE

DATE

DATE

APPENDIX A — CONSIGNED GOODS & PRICING

Prices **VAT-inclusive / + 7% VAT** . Updated on each replenishment; superseded by signed Delivery Notes.

#	SKU / PRODUCT	VINTAGE	VOL.	QTY DELIVERED	CONSIGNMENT PRICE (THB)	NOTES
1						
2						
3						
4						

APPENDIX B — WEEKLY SALES REPORT

Submitted every Tuesday for the prior week. Drives the Tax Invoice for items sold. · Partner: **name** ·
Week: **from** – **to** · Submitted: **Tuesday date**

SKU / PRODUCT	OPENING	DELIVERED	SOLD	LOSS	CLOSING	SOLD VALUE (THB)
Total						

WINE & WHISKEY

Phuket, Thailand · Open daily 11:00 – 22:00
Consignment Agreement (Trial) · Wine & Whiskey × FlyO · complete highlighted fields before signing